

security, but there is a practical difficulty in determining for what sum the tenant for life is to give security. If he gives security for the whole amount of the fine, because by possibility he may enjoy the whole benefit resulting from the renewal, the difficulty is got over; but the tenant for life may not be able to give security for the whole although he might for a part, and how is the Court in such a case to deal with the interests of the parties? I do not, however, think that the difficulty to which I have adverted is insuperable. The tenant for life may in the *first instance* be required to give security for an amount calculated upon the assumption that his life will last during a portion of the renewed lease. If he should die within the time during which it was assumed that his life would last, the security would of course be more than sufficient to satisfy his proportion of the fine, and it would be void for the excess. If he outlived that time he might, if necessary, be called upon to give a further security to cover the additional proportion then to be attributed to him. It appears to me proper to declare that *each party* is to bear the burthen of the renewal in the proportion of *his actual enjoyment* of the estate. There will be a direction for the tenant for life to keep down the interest, and a reference to ascertain what proportion of the fine was properly payable by him. This inquiry is necessarily by anticipation. There will then be a reference to approve of a security, and these directions must be followed by a declaration that the reference and security are to be without prejudice to the question whether the tenant for life may or may not be liable to pay less or more than the sum for which the security is given." The doctrines enunciated in this case have been since approved as sound, and the tenant for life, where the fine has been paid out of the trust fund, has been ordered to [*378] give security * for his contribution to the fine in proportion to the benefit which he should ultimately derive from the new life (a).

It must be observed, however, that *Jones v. Jones* leaves untouched the case which creates the greatest difficulty, viz.,

(a) *Hudleston v. Whelpdale*, 9 Hare, 775.